

Hari Om Sen vs Smt. Sonal Jain on 12 May, 2015

FA-805-2012
(HARI OM SEN Vs SMT. SONAL JAIN)

12-05-2015

Shri S.K. Pathak, learned counsel for the appellant.
Smt. Nirmala Nayak, learned counsel for the respondent.

Heard on I.A. No.9433/2012.

As an interim measure by order dated 24.8.2012 the respondent was restrained from remarrying. However, respondent has filed documents. Perusal thereof reveals that after the decree of divorce was granted in favour the respondent, she had re- married on 24.6.2012 (see document no.3 filed along with an application for taking document on record). Since the respondent has already remarried, therefore, the consequences enshrined in Section 15 of Hindu Marriage Act shall be considered at the time of final hearing.

In view of this matter, we do not find any justification to continue the interim order passed on 24.8.2012. Accordingly, we vacate that order.

I.A. No.9433/2012 stands disposed of.

(S.K. SETH)
JUDGE

(C V SIRPURKAR)
JUDGE